

**SENATE SUBSTITUTE FOR
HOUSE BILL NO. 4192**

A bill to amend 1994 PA 451, entitled
"Natural resources and environmental protection act,"
by amending section 3122 (MCL 324.3122), as amended by 2023 PA 140.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 3122. (1) Until October 1, 2027, the department may levy
2 and collect an annual groundwater discharge permit fee from
3 facilities or municipalities that discharge wastewater to the
4 ground or groundwater of this state under section 3112. The fee is
5 as follows:

6 (a) For a group 1 facility, ~~\$7,500.00.~~ **\$7,250.00.**

7 (b) For a group 2 facility, ~~or a \$2,000.00.~~

8 **(c) For a mobile home park licensed under section 16 of the**
9 **mobile home commission act, 1987 PA 96, MCL 125.2316, that has**



1 1,000 or fewer residents and that would otherwise be considered a
 2 group 1 facility, \$4,380.00. As used in this subparagraph, "mobile
 3 home park" means that term as defined in section 2 of the mobile
 4 home commission act, 1987 PA 96, MCL 125.2302.

5 (d) For a campground licensed under part 125 of the public
 6 health code, 1978 PA 368, MCL 333.12501 to 333.12546, that has
 7 1,000 or fewer sites and that would otherwise be considered a group
 8 1 facility, \$4,380.00. As used in this subparagraph, "campground"
 9 means that term as defined in section 12501 of the public health
 10 code, 1978 PA 368, MCL 333.12501.

11 (e) For a municipality of 1,000 or fewer residents,
 12 ~~\$1,800.00.~~ **\$2,100.00.**

13 (f) ~~(e)~~ For a group 2a facility, ~~\$300.00.~~ **\$350.00.**

14 (g) ~~(d)~~ For a group 3 facility, ~~\$240.00.~~ **\$275.00.**

15 (2) ~~Within~~ **Not later than** 180 days after receipt of a complete
 16 application for a permit to discharge wastewater to the ground or
 17 to groundwater, the department shall grant or deny a permit, unless
 18 the applicant and the department agree to extend this time period.
 19 If the department fails to make a decision on an application within
 20 the time period specified or agreed to under this subsection, an
 21 applicant subject to an annual groundwater discharge permit fee
 22 shall receive a 15% annual discount on the annual groundwater
 23 discharge permit fee.

24 (3) If the person required to pay the annual groundwater
 25 discharge permit fee under subsection (1) is a municipality, the
 26 municipality may pass on the annual groundwater discharge permit
 27 fee to each user of the municipal facility.

28 (4) As used in this section, "group 1 facility", "group 2
 29 facility", "group 2a facility", and "group 3 facility" do not



1 include a municipality with a population of 1,000 or fewer
2 residents.